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CASE #	CASE NAME	HEARING NAME
CVME2503987	ROBINSON VS CALIFORNIA STATE TEACHER'S RETIREMENT SYSTEM (CALSTRS)	MOTION TO DISMISS PETITION FOR WRIT OF MANDATE

Tentative Ruling: Granted. Notice of Non-Opposition filed 07/27/26.

2.

CASE #	CASE NAME	HEARING NAME
CVME2510810	GERARDI VS MILO	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: DEMURRER OVERRULED.

MOTION TO STRIKE GRANTED WITH 20 DAYS LEAVE TO AMEND.

This is personal injury case. On November 20, 2023, Plaintiff Michael Gerardi ("Plaintiff") sustained serious injuries when a vehicle driven to Defendant Serenity Ceralde Milo ("Milo" or "Driver") collided with Plaintiff's vehicle. Plaintiff alleges that, prior to the collision, Milo, who was a minor, and Defendant Jario Perez ("Perez") consumed alcohol, which was provided to them by Defendants BJ'S Restaurant, Inc. and Genevieve Kristine Aleman ("Defendants"). Plaintiff alleges that Defendant driver drove the vehicle at a high rate of speed until she lost control of the car, which crossed into oncoming traffic and collided head-on with Plaintiff's vehicle. The car driven by Milo was owned by Defendant Kim Kyeong ("Kyeong").

On September 17, 2025, Plaintiff filed his Complaint against Milo, Perez and Kyeong and Milo's father, David Milo. On November 20, 2025, Plaintiff filed Doe Amendments naming BJ's Restaurants, Inc., BJ's Restaurant Operations Company and Aleman. On March 27, 2026, Plaintiff filed the operative First Amended Complaint ("FAC"). He asserts five causes of action for: (1) Negligence/Gross Negligence; (2) Negligence Per Se (Violation of Vehicle Code § 23109); (3) Negligence Per Se (Violation of Vehicle Code § 21701); (4) Negligent Entrustment; and (5) Violation of Business and Professions Code Section 25602.1.

Defendants now demur to the first and fifth causes of action against them. Defendants argue that the Negligence/Gross Negligence cause of action is improper because of Bus. & Prof. Code § 25602 provides the only basis for a claim based on the furnishing of alcohol. Defendants argue that the fifth cause of action is time-barred because it was not asserted in the initial Complaint and is not based on the same general set of facts or the same injury as the claims asserted in the Complaint.

Plaintiff argues that his negligence cause of action is based on a general duty of care not to serve alcohol to intoxicated minors rather than section 25602. Plaintiff argues that he has sufficiently pled negligence and gross negligence. Plaintiff argues that the fifth cause of action relates back to the original Complaint because it is based on the same set of facts.